BMC -003	CONSTITUTION OF INDIA	L T P 3 0 0	3 Credits

Pre-requisites: None

Course Objectives:

CO1	To Enable the student to understand the importance of constitution
CO2	To understand the structure of executive, legislature and judiciary
CO3	To understand philosophy of fundamental rights and duties
CO4	To understand the autonomous nature of constitutional bodies like Supreme Court and high court, controller and auditor general of India and election commission of India.
CO5	To understand the central and state relation, financial and administrative.

Detailed Syllabus

Module 1:

Introduction and History of Indian constitution.

Meaning of the constitution law and constitutionalism, Historical Background of the Constituent. Assembly, Government of India Act of 1935 and Indian Independence Act of 1947, Enforcement of the Constitution, Indian Constitution and its Salient Features.

Module 2

Basic Information about Indian Constitution

The Preamble of the Constitution, Fundamental Rights, Fundamental Duties, Directive Principles of State Policy, Parliamentary System, Centre-State Relations, Amendment of the Constitutional Powers and Procedure, Emergency Provisions: National Emergency, President Rule, Financial Emergency, and Local Self Government – Constitutional Scheme in India.

Module 3

Union Executive and State Executive

Powers of Indian Parliament Functions of Rajya Sabha, Functions of Lok Sabha, Powers and Functions of the President, powers of Indian President, Powers and
Functions of the Prime Minister, Judiciary – Supreme Court, Judicial Review, Public Interest Litigation, Judicial Activism, LokPal, LokAyukta, The Lokpaland Lokayuktas Act 2013, State Executives – Powers and Functions of the Governor, Powers and Functions of the Chief Minister, Functions of State Cabinet, Functions of State Legislature, Functions of High Court and Subordinate Courts.

Reference book:

1. Brij Kishore Sharma: Introduction to the Indian Constitution, PHI, New Delhi, latest edition.
2. Granville Austin: The Indian Constitution: Cornerstone of a Nation. 1966, Oxford Clarendon Press.
3. Subhash C. Kashyap: Our Constitution: An Introduction to India's Constitution and constitutional Law, NBT, 2018.

4. PM Bakshi: The Constitution of India, Latest Edition, Universal Law Publishing.
5. V.K. Ahuja: Law Relating to Intellectual Property Rights (2007)
6. Suresh T. Viswanathan: The Indian Cyber Laws, Bharat Law House, New Delhi-88
7. P. Narayan: Intellectual Property Law, Eastern Law House, New Delhi
8. Prabudh Ganguli: Gearing up for Patents: The Indian Scenario, Orient Longman.
9. BL Wadehra: Patents, Trademarks, Designs and Geological Indications.Universal Law Publishing - LexisNexis

CO1	Able to **understand** historical background of the constitutional making and its importance for building a democratic India, the structure of Indian government, the structure of state government, the local Administration,
CO2	Able to **apply** the knowledge on directive principle of state policy, the knowledge in strengthening of the constitutional institutions like CAG, Election Commission and UPSC for sustaining democracy.
CO3	Able to **analyze** the History, features of Indian constitution, the role Governor and Chief Minister, role of state election commission, the decentralization of power between central, state and local self-government.
CO4	Able to **evaluate** Preamble, Fundamental Rights and Duties, Zilla Panchayat, block level organization, various commissions of viz SC/ST/OBC and women.
CO5	Able to **understand** historical background of the constitutional making and its importance for building a democratic India, the structure of Indian government, the structure of state government, the local Administration,